

at least five (5) days before the CMC to apprise the Court of the status of Defendant's bankruptcy case.

8. 9:00 AM CASE NUMBER: C23-02791

CASE NAME: JOSE ANTONIO GONZALES MARQUEZ VS. JRT FREIGHT, LLC

***FURTHER CASE MANAGEMENT CONFERENCE CONTINUED FROM 12/16/25**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on Lines 12 and 13. Counsel are ordered to appear for the CMC.

Law & Motion

9. 9:00 AM CASE NUMBER: C22-00737

CASE NAME: SAHAR VS. SHEFAYEE JR.; MILLER

***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS INCURRED ON APPEAL CCP 425.16(C)(1)**

FILED BY: MILLER, RAYMOND R.

TENTATIVE RULING:

Summary

Defendant Raymond R. Miller's ("Defendant" or "Miller") Motion for Attorney's fees and Costs against Plaintiffs Joseph Sahar, Nathan Sahar and Michele Sahar ("Plaintiffs") incurred on Appeal is **continued** to April 15, 2026 at 9:00 a.m.

Defendant is ordered to file a Proof of Service evidencing that this Motion was served on Plaintiffs at least five (5) court days before the hearing evidence proper and timely service of this motion pursuant to Cal. Code of Civ. Proc §1005(b). Defendant's Counsel shall also file a declaration explaining whether service was accomplished timely on Plaintiffs' counsel

Background

Plaintiffs voluntarily dismissed their complaint after Miller filed a special motion to strike pursuant to the anti-SLAPP motion. Following dismissal, Miller moved for attorney's fees and costs pursuant to the same statute. This Court granted that motion, awarding \$13,555 in attorney's fees and costs to Miller. Plaintiffs appealed.

On January 23, 2026, the Court of Appeal affirmed this court's order, and remitted this case back to the trial court. The Court of Appeal ordered that Miller may recover his costs on appeal pursuant to Rule 8.278(a)(1).

On November 18, 2025, Miller filed this Motion for attorney's fees and costs incurred on appeal pursuant to Cal. Code of Civ. Proc. § 425.15(c)(1), seeking \$30,000 in attorney's fees and \$1,022 in costs, based on 60 hours of work, billed at a rate of \$500.00 per hour. The Motion was supported by Notice, Memorandum of Points and Authorities and the Declaration of James O'Gallagher. However, the Court's register of actions does not show that Miller filed a proof of service evidencing service of